Boston Public Schools AI Policy: Data and Student Privacy Passages

Excerpted verbatim from *Boston Public Schools Artificial Intelligence (AI) Policy (Boston Public Schools, Massachusetts, Spring 2026)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text.

I. Vision, Core Values, and Guidelines (excerpt)

Source: page 1

This policy establishes district-wide expectations for the safe and appropriate use of AI by staff and students. It is grounded in our commitments to student learning, data privacy, and transparency.

Core Values

- **Safety, Privacy, & Security:** The protection of student and staff data is paramount. AI systems and tools must meet district standards for data privacy, security, and compliance.
- **Responsible Use:** AI tools should be used in a manner that is socially responsible, safe, and legal. This includes prioritizing privacy and security of student and staff data, being mindful of potential biases or misinformation, and avoiding overreliance.

II. Governance, Data Privacy, and Security

Source: pages 2–3

Implementation Responsibility

The District will maintain a centralized list of all approved AI tools, provide required training, and establish guidelines for implementation.

Procurement and Vendor Oversight

- **Mandatory Vetting:** All AI tools must undergo a Privacy Impact Assessment (PIA) for compliance with FERPA (Family Educational Rights and Privacy Act), COPPA (Children's Online Privacy Protection Act), and District security standards. Visit our website to learn about the approval process.
- **Data Ownership:** District data remains District property and cannot be used by vendors to train public AI models. To ensure compliance with this principle, contracts must include language noting this requirement.
- **Vendor Disclosure:** Vendors are required to disclose AI capabilities within their products, including updates that add AI functionality to existing portals and/or tools.
- **Technical Control:** The District must retain the ability to enable, disable, or restrict specific AI functionalities within any adopted software.

Use of AI with Student and Staff Data

Students and staff may only use AI tools that have been reviewed and approved by the District and included on the District's published list of approved AI tools.

- **Prohibited Use:** Under no circumstances may students or staff enter personally identifiable information (PII), including student names, IDs, IEPs, 504 plans, health records, or any confidential information, into unapproved AI tools (e.g. open AI platforms or personal accounts).

- **Responsibility:** All users are responsible for protecting student data. When in doubt, users must not input data into an AI tool and should seek guidance from the Office of Technology.
- **Use of Non-Approved Tools:** The use of personal, non-approved AI tools for school-related work is prohibited when it involves district data or student information.

For more information about student data privacy, read BPS Superintendent Circular ODA-03.

Security

- **Secure Logins:** Access to AI systems containing sensitive data will be governed by single-sign on, role-based access controls and multi-factor authentication (MFA).
- **Data Breaches:** The District will follow its cybersecurity protocols for any AI-related breaches.

III. AI in Teaching, Learning, and Professional Practice (excerpt)

Source: pages 3–4

- **Staff Training:** All new staff will complete required training on AI use, including data privacy, bias, instructional use, and ethical considerations.

Use of AI Notetakers

The use of third-party AI tools for recording or transcribing virtual meetings is prohibited unless they are District-approved tools and active consent is obtained from all participants.

IV. Prohibited Uses of AI (excerpt)

Source: page 4

- Creation, distribution, or use of AI-generated audio, video, or images, including deepfakes or manipulated content, that clone or falsely depict real individuals without their knowledge and explicit consent.

V. Use of AI by Students (excerpt)

Source: pages 4–5

Students must:

- Only use approved AI tools when directed by a teacher.
- Never enter any personal or confidential information into AI tools.

VI. Family Engagement (excerpt)

Source: page 5

- Understanding student data privacy protections, district safeguards, and responsible data sharing practices.

VII. Policy Review and Updates (excerpt)

Source: page 5

BPS will communicate updates to stakeholders and privacy guidance to support implementation as AI tools and use cases continue to develop.

VIII. Appendix: Reference Circulars (excerpt)

Source: page 5

- ODA-03: Student Data Privacy

IX: Glossary of Terms (excerpt)

Source: pages 5–6

Approved AI Tools: AI tools that have been reviewed and authorized by BPS through its Privacy Impact Assessment and governance process and are included on the District's published list of approved tools.

Data Breach: A security incident where sensitive, confidential, or protected information is accessed, stolen, or used by an unauthorized party. These incidents involve the loss of control or exposure of personal (PII), financial, or health data. Breaches can be intentional or accidental.

Personally Identifiable Information (PII): Information that can be used to identify a person, such as name, student ID, address, date of birth, or records such as Individual Education Plans (IEPs), 504 Plans, and health information.

Shadow AI: Using AI tools without the knowledge or approval of the District, especially when using for school or work-related purposes.